

March 15, 2025

Faisal D'Souza

Networking and Information Technology Research and Development (NITRD)

National Coordination Office (NCO), National Science Foundation

2415 Eisenhower Avenue

Alexandria, VA 22314

Re: AI Action Plan

Dear Mr. Faisal D'Souza,

The Trust, Innovation, and Ethics Research for Responsible AI (TIERRA), at the University of Michigan Medical School is a program dedicated to promoting policies and best practices on the responsible development and application of artificial intelligence in healthcare. Utilizing knowledge and expertise from academia, industry, and the public, TIERRA leads research at the intersections of public trust, health information technologies, and healthcare systems. We are writing this letter to share our policy ideas regarding the future of AI in the U.S. healthcare system based on the research that we have conducted around AI use in healthcare both locally and nationally.

Specifically, we recommend the new AI Action Plan:

1. Ensure privacy and security of data and communicate these measures to patients

AI tools in healthcare access and process sensitive patient data with varying levels of human oversight. Our nationally representative survey on perceptions of AI in healthcare shows that privacy concerns reduce trust and perceived health benefits from AI tools.¹ Additionally, preliminary findings from our recent public deliberations representing participants from 30 Michigan counties identified both privacy and data security as key concerns regarding the use of AI tools in healthcare. Protecting patient data privacy is crucial to ensuring patient safety and maintaining trust in healthcare providers and health systems. The AI Action Plan should require federal agencies to enforce strict data governance standards throughout development and application of AI, particularly when patients and patient data are involved. Additionally, the AI Action Plan should advise federal agencies like the U.S. Department of Health and Human Services (HHS) to develop guidelines to assist healthcare practitioners on proper patient disclosures and informed consent models when using AI tools in clinical settings. These

guidelines can assist health systems develop and implement protocols that protect and preserve patient autonomy as AI tools become more integrated in healthcare delivery.

2. Establish technical and safety standards for AI tools, and especially for Software as a Medical Device

Establishing national AI safety and performance benchmarks is crucial for standardizing AI applications in healthcare. The AI Action Plan should advise federal agencies like the Food and Drug Administration (FDA) to develop benchmarks that provide clear guidelines for all health AI developers and companies regarding model training, validation, and real-world implementation to ensure consistency across healthcare systems. These should apply to tools that can currently be classified as Software as a Medical Device (SaMD), as well as other applications that fall outside this purview. The AI Action Plan should also advise federal agencies to develop guidelines like the FDA that promote system trust measures when evaluating AI models that are intended to be or are used in healthcare settings.

3. Incentivize transparency, explainability, and assurance to ensure trustworthy AI

As health systems adopt AI tools in new and potentially high-risk ways, black-box AI models impose ethical uncertainties in clinical-decision making and can negatively influence patient trust in their provider or their therapeutic recommendations. Policies should incentivize transparency in AI development, ensuring that models provide interpretable and clinically meaningful outputs while also balancing ethical considerations such as ensuring that the health AI tool does not pose a risk or harm to subpopulations. In addition, the AI Action Plan should advise the FDA and HHS to track the use of AI tools in healthcare settings and examine its effectiveness in improving not only inefficiencies in healthcare delivery but also against patient health outcomes.

The integration of artificial intelligence in healthcare delivery presents significant opportunities and challenges for health systems, providers and their patients. Artificial intelligence has the potential to help providers and clinical researchers unlock healthcare innovations that can effectively improve patient and population health outcomes. However, our research shows that public trust in health systems to use AI responsibly and to ensure that AI tools would not cause harm to them is low.² Trust is a foundational element to successful patient-provider relationships, and trust in the healthcare system has been demonstrated as a predictor of patient engagement.³ Irresponsible use of AI in healthcare can sow mistrust in providers and health systems and potentially result in negative patient and health outcomes.

At a time when trust in health institutions is at a decline, ensuring that policies promote patient-centered care such as attention to patient safety, autonomy, and access to care is at the core of the AI Action Plan and is essential to AI's responsible deployment in healthcare as well as sustainable growth and continued innovation.

A clear regulatory framework is essential to ensuring AI applications in healthcare align with patient-centered care while encouraging innovation. By prioritizing privacy, standards, and explainability, the AI Action Plan can promote responsible AI integration and improve population health outcomes in the United States.

We appreciate your consideration of our recommendations and look forward to the development of the AI Action Plan.

Sincerely,

Dr.  Ph.D, MPH
Director | Trust, Innovation, and Ethics Research for Responsible AI
TIERRA | University of Michigan Medicine

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References

1. Nong P and Platt J. Patient's trust in health systems to use artificial intelligence. JAMA Network Open. 2025;8(2):e2460628.
2. Nong P and Platt J. 2025.
3. Platt J, Nong P, Smiddy R, Hamasha R, Carmona Clavijo G, Richardson J, and Kardia SLR. Public Comfort with the use of ChatGPT and expectations for healthcare. JAMIA. 2024; 1976-1982. <https://doi.org/10.1093/jamia/ocae164>.